

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEPHEN JOSEPH IRWIN,

Petitioner

VS.

GERMANO IRWIN,

Respondent

) Case Number: FDI-26-802716

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT FILED BY PETITIONER 07.07.26

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 9:00 AM on 9/8/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) On 3/2/2026, in related Case No. FDV-26-818997, Petitioner Stephen Irwin filed a Request for Domestic Violence Restraining Order (DVRO) against Respondent Germano Irwin.
- 2) On 3/3/2026, Petitioner was granted a Temporary Restraining Order (TRO) against Respondent which includes an order for “[Respondent] to stop searching personal property of [Petitioner].”
- 3) According to the Proof of Service filed 3/10/2026, the TRO and other pleadings were personally served on Respondent on 3/9/2026.
- 4) On 3/16/2026, Respondent filed a Request for DVRO against Petitioner.
- 5) On 3/17/2026, Respondent was granted a Temporary Restraining Order against Petitioner.
- 6) On 7/7/2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt alleging that Respondent violated the Temporary Restraining Order. Petitioner states that on 4/6/2026

Respondent sent him a text message stating that Respondent “went to the apartment to check on the birds” and noticed that “some of my letters were open and in the trash.” Petitioner states he did not give Respondent permission to enter his residence or inspect his personal property. On 4/21/2026, Petitioner discovered Respondent had removed personal property, including Petitioner’s photo memory scrapbook and immigration-related file. Petitioner states he emailed Respondent’s attorney requesting that the items be returned, but Respondent has not returned the items. Petitioner asks the Court to find Respondent in contempt and order Respondent to immediately return Petitioner’s “original photo memory scrapbook and original immigration-related file, including affidavits, sponsor-related records, invoices, supporting documentation, financial records, personal identifying information, photographs, travel records, and other related personal records.” Petitioner further requests that Respondent be “ordered not to copy, destroy, alter, withhold, or use these materials except as permitted by the Court, and that any return occur through counsel, law enforcement, or other neutral method ordered by the Court.”

7) On 7/21/2026, Judge Gold denied both parties’ requests for a DVRO, and Case No. FDV-26-818997 was consolidated into Case No. FDI-26-802716.

8) On 9/1/2026, Respondent filed a Response to Order to Show Cause and Affidavit for Contempt. Respondent asks the Court to dismiss the OSC re: contempt because the underlying DVRO proceeding was dismissed on 7/21/2026. Additionally, Respondent denies there is an appropriate basis to find him in contempt and he reserves “all defenses to the allegations contained in the Order to Show Cause and Affidavit for Contempt.” Respondent does not address Petitioner’s allegations that he entered Petitioner’s residence without his consent or that Respondent is in possession of items belonging to Petitioner.

B. Findings and Order

1) **The parties are ordered to appear.**